

**IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARELSTON DIVISION**

Debra Nelson,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions,
Stephanie Lanier, and Shane Sablotsky,

Defendants.

Case No.: 2:25-cv-00405-DCN-MGB

**MEMORANDUM IN OPPOSITION TO
PLAINTIFF’S MOTION TO COMPEL
(DKT. 241) OF NON-PARTIES
BONNIE TRAVAGLIO HUNT AND
HUNT LAW, LLC**

TO: THE HONORABLE COURT:

Non-Parties Bonnie Travaglio Hunt and Hunt Law, LLC (collectively “Hunt”) submit this memorandum in opposition to Plaintiff’s ‘motion addressing third-party subpoena noncompliance and resulting prejudice’ (Dkt. No. 241) as follows:

BACKGROUND

Plaintiff, through counsel Bonnie Travaglio Hunt of Hunt Law, LLC (collectively “Hunt”), initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) A few weeks after the case was removed, Ms. Hunt moved to withdraw as counsel for Plaintiff. (Dkt. No. 12-1 at 2) Magistrate Judge Molly Cherry, then assigned the case, granted Ms. Hunt’s motion to be relieved as counsel on February 20, 2025, and Plaintiff has proceeded *pro se* since that time. (Dkt. No. 19). Shortly thereafter, Hunt withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

Following the withdrawal, Plaintiff sued Hunt for legal malpractice in Nelson v. Hunt, et al., 2025-CP-10-03145, Charleston County Court of Common Pleas. The undersigned represents Hunt in that case. The Court granted Hunt's motion to dismiss, which Plaintiff is attempting to appeal.

Following the dismissal, Plaintiff sought a restraining order against the undersigned after he sent her orders and other materials in dismissed legal malpractice case. Nelson v. Countryman, 2025OR1011100036, Charleston County Magistrate Court. The request for a restraining order was denied. Plaintiff then sued the undersigned personally in Nelson v. Countryman, 2025-CP-10-05698, Charleston County Court of Common Pleas seeking to have the order denying the complaint for a restraining order "vacated" because the judge was allegedly biased.

Now, without evidence, Plaintiff accuses Defendants of "paying off" Hunt in exchange for her withdrawing as counsel and implicitly accused Hunt of withholding communications and "cyber intrusion."

Plaintiff moved the Court to issue subpoenas to six non-parties, which did not include Hunt. (Dkt. No. 56). Judge Cherry issued an Order granting Plaintiff's motion and authorizing the subpoenas, which again, did not include a subpoena to Hunt. (Dkt. No. 73). Plaintiff then filed a motion to enforce non-party subpoenas, including a subpoena purportedly issued to Hunt. (Dkt. No. 105).

Plaintiff apparently received six signed blank subpoena forms from the Clerk of Court for the issuance of subpoenas to the six non-parties authorized in Judge Cherry's Order. Despite no Court order providing for a subpoena to Hunt, Plaintiff issued one. (Ex. 1 to Dkt. No. 196). The subpoena included an issue date of October 2, 2025. Id. Hunt objected to the subpoena. (Dkt. No.

172) Plaintiff then moved to strike Hunt's objection. (Dkt. No. 176) Hunt filed a memorandum in opposition to the motion to strike. (Dkt. No. 179)

Judge Baker issued Dkt. No. 192, an Order denying Plaintiff's motions (Dkt. Nos. 105 and 176) Hunt then received the subpoena dated October 2, 2025 (Ex. 1 to Dkt. No. 196), after which she filed an objection. (Dkt. No. 196). Plaintiff then filed an objection to Judge Baker's Orders, including Dkt. No. 192. Finally, Plaintiff filed a motion seeking, among other things, to enforce the subpoena on Hunt. (Dkt. No. 241)

Below is a chart chronologically detailing the filings pertinent to this matter.

Timeline

<u>Date</u>	<u>Dkt. #</u>	<u>Filer</u>	<u>Filing</u>
7/16/25	56	Plaintiff	'Motion to compel or request for issuance of subpoenas' requesting issuance of subpoenas to six specific non-parties for information and/or material to: (a) Verizon Wireless; (b) Apple, Inc., (c) Motorola Solutions, Inc.; (d) Microsoft Corporation; (e) Google, LLC; and (f) American Honda Motor Corp.
8/21/25	73	Judge Cherry	Order granting Plaintiff's request for issuance of subpoenas to the six non-parties referenced in Dkt. No. 56. These did not include Hunt. The Order noted Plaintiff had not submitted proposed subpoenas to the Court for the Clerk of Court to sign and issue. The Order directed the Clerk of Court to send six unsigned blank subpoena forms to Plaintiff, and for Plaintiff to thereafter appropriately and completely complete the subpoena forms and return them to the Court for review. Further, the Order stated that once the subpoena forms were appropriately and fully completed, returned, and reviewed by the Court, they will be signed and returned to Plaintiff for prompt service on the third parties.
9/16/25	105	Plaintiff	'Motion to compel party production, to enforce non-party subpoenas duces tecum, and for entry onto land inspection under Rule 34.' Without providing any evidence, Plaintiff's motion states, <i>Plaintiff reasonably believes Defendants (including outside counsel)</i>

			<i>communicated with or compensated her former attorney [Hunt]. Plaintiff seeks non-privileged communications and financial records to test bias/collusion.</i> p. 2. The motion references a subpoena allegedly served on Hunt and requested enforcement of the same. p. 4.
10/8/25	164	Plaintiff	‘Notice of service of subpoena on Hunt Law, LLC via South Carolina Secretary of State.’ The notice did not include a copy of any subpoena.
10/9/25	171	Plaintiff	‘Notice of notice of service of subpoena on Hunt Law, LLC via South Carolina Secretary of State.’ Dkt. No. 171. This notice also failed to include a copy of any subpoena.
10/9/25	172	Hunt	Objections to Plaintiff’s notices of service of subpoenas (Dkt. Nos. 164 and 171).
10/14/25	176	Plaintiff	‘Motion to strike non-party counsel’s improper objection and for protective order to restrict repetitive and irrelevant filings.’ Among other things, this motion told the Court that Plaintiff’s subpoena to Hunt was specifically authorized by Judge Cherry’s Order of August 21, 2025. Dkt. No. 73. This is not true. Judge Cherry’s Order authorized subpoenas to six non-parties that did not include Hunt. Plaintiff’s motion to strike also accused the undersigned of <i>a consistent pattern of convoluting the record through repetitive and irrelevant filings...</i> Plaintiff asked the Court to restrict the undersigned from submitting further filings without leave of court. However, Dkt. No. 172 was the undersigned’s only prior filing in this matter at the time.
10/15/25	179	Hunt	Response in opposition to Dkt. No. 176, Plaintiff’s motion to strike.
10/20/25	192	Judge Baker	Order denying Plaintiff’s motions (Dkt. Nos. 105 and 176) and finding the subpoena(s) to Hunt unauthorized by the Court and unenforceable, noting Plaintiff’s ‘plainly incorrect’ claim of court approval for the subpoena(s) to Hunt. The Order also determined the material the subpoena(s) sought has ‘absolutely no relevance’ to Plaintiff’s claims.

10/20/25	Ex. 1 to 196	Hunt	The undersigned received a subpoena to Hunt via certified mail, no return receipt or restricted delivery.
10/21/25	196	Hunt	Objections to Plaintiff's subpoena(s) to Hunt.
11/14/25	219	Plaintiff	Objections to Judge's Orders (Dkt. Nos. 192 and 194)
12/4/25	241	Plaintiff	'Motion addressing third-party subpoena noncompliance resulting in prejudice.' This includes a request to compel Hunt to respond to a subpoena. As to Hunt, the motion states, <i>Judge Cherry previously authorized the Hunt subpoena after reviewing Plaintiff's evidence. Judge Baker later quashed it without reviewing the evidence and based on false statements by Defense. Plaintiff reasserts Hunt as a critical third-party subpoena for cyber-intrusion links, attorney interference, and withheld communications.</i>

ARGUMENT

1. The Court never authorized a subpoena to Hunt.

As Judge Baker's Order (Dkt. No. 192) pointedly states, *this Court did not "expressly approve" the nonparty subpoena at issue here* [the subpoena to Hunt]. *Plaintiff's claims to the contrary are plainly incorrect. Id.* The Court approved subpoenas to six nonparties, which did not include Hunt. (Dkt. No. 73) Nothing has changed in this regard. The Court has never approved a subpoena to Hunt.

Plaintiff's objection (Dkt. No. 219) maintains she submitted a proposed subpoena to Hunt to the Clerk of Court on September 25, 2025, and that the subpoena was held for judicial review then signed and mailed back to Plaintiff. *Id.* at 2. It is unclear how this subpoena came to be. What is clear is that (a) Nelson's motion for issuance of third-party subpoenas (Dkt. No. 56) did not reference or request a subpoena to Hunt; (b) Judge Cherry's order granting the request for issuance of subpoenas (Dkt. No. 73) did not authorize a subpoena to Hunt; and (c) the Court has not issued any subsequent order providing for the issuance of a subpoena to Hunt.

2. No basis exists for a subpoena to Hunt.

Federal Rule of Civil Procedure imposes stricter limitations on discovery sought from non-parties. Indeed, “[a] more demanding variant of the proportionality analysis [] applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” Virginia Dept. of Corr. v. Jordan, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). Ultimately, giving the nonparty status “special weight,” a court must determine “whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.” Id.; Spring v. Bd. of Trustees of Cape Fear Cmty. Coll., No. 7:15-CV-84-BO, 2016 WL 4204153, at *1 (E.D.N.C. Aug. 8, 2016).

Plaintiff issued a subpoena to Hunt for “non-privileged communications and financial records to test bias/collusion” between Ms. Hunt and Defendants (including outside counsel) communicated with or compensated her former lawyer. (Dkt. No. 105 at 2) Plaintiff provides no evidence to support such a claim. The undersigned has already objected to the subpoena, as Ms. Hunt has already provided Plaintiff her full casefile at the time the client-lawyer relationship was terminated, Ms. Hunt possesses no other responsive documents, and Plaintiff designed the subpoena to harass and abuse Hunt and her counsel.¹ (Dkt. No. 172 at 3, 5)

Further, Judge Baker (in Dkt. No. 192) correctly determined the materials requested from Hunt have “absolutely no bearing on the claims set forth in Plaintiff’s Fourth Amended Complaint.” (*See generally* Dkt. Nos. 79, 105, 164, 171, 172, 176, 178.) This is true, as Plaintiff’s claims against the Defendants all relate to things she alleges happened during her employment

¹*See, e.g., Nelson v. Hunt, et al.*, 2025-CP-10-03145, Charleston County Court of Common Pleas, *Nelson v. Countryman*, 2025OR1011100036, Charleston County Magistrate Court, *Nelson v. Countryman*, 2025-CP-10-05698, Charleston County Court of Common Pleas, and *Nelson v. Hunt Law, LLC*, Appellate Case No.: 2025-002408, South Carolina Court of Appeals.

with Curtiss-Wright. These are employment discrimination and other claims arising out of Plaintiff's employment that have nothing whatsoever to do with Hunt. In fact, Hunt initiated the case for Plaintiff prior to the relationship breakdown.

Plaintiff now says Hunt is a "critical third-party subpoena [sic] for cyber-intrusion links, attorney interference, and withheld communications." (Dkt. No. 241 at 3) However, Plaintiff provides no evidence to support these claims or attempt to explain this baseless statement. In fact, no such evidence exists, nor could it. Again, Plaintiff pursues claims against her former employer and related parties. Those include claims for "cyber intrusion" against the Defendants, not Hunt. One reason the lawyer-client relationship between Hunt and Plaintiff broke down was Hunt's refusal to pursue such claims for Plaintiff. It is unclear what Plaintiff means by "attorney interference" and "withheld communications." Again, Plaintiff already has the casefile from Hunt.

Plaintiff has failed to identify a single cognizable reason why the material she seeks from Hunt will shed light on her claims against the Defendants in this case. The reasons she propounds are nonsensical. She also fails to demonstrate why she cannot obtain the requested materials from Defendants. (*See generally* Dkt. Nos. 105, 176) Therefore, under the appropriate proportionality analysis, responding to the subpoena would impose undue burden on Hunt.

3. Hunt has never been served with a Subpoena.

Federal Rule of Civil Procedure 45(b)(1) requires service of a subpoena by delivering it to the named recipient. Service via certified mail (without return receipt or restricted delivery) does not comply with Fed. R. Civ. P. 45(b)(1). Federal courts interpret this as in-hand service, not mail. Courts that have allowed alternate means of service (like certified mail, no return receipt or restricted delivery), have done so only after the party requesting the accommodation diligently attempted to effectuate personal service. *See, e.g., Oceanfirst Bank v. Hartford Fire Ins. Co.*, 794

F.Supp.2d 752 (E.D. Mich. 2011); Franklin v. State Farm Fire & Cas. Co., 2009 WL 3152993 (E.D. Mich. 2009). Some courts in the 4th Circuit allow alternatives after diligence (*e.g.*, Hall v. Sullivan, 229 F.R.D. 501, 506 (D. Md. 2005)).

South Carolina Code § 33-44-111 provides that if an LLC fails to appoint or maintain a registered agent for service of process in South Carolina, or if the agent for service of process cannot be found with reasonable diligence at the agent's address, service on the LLC may be made through the Secretary of State.

a. Service through the Secretary of State

Plaintiff's initial attempt at service of the invalid and unauthorized subpoena was through the South Carolina Secretary of State pursuant to S.C. Code § 33-44-114(c). (Dkt. Nos. 164 ad 171) This appears to be an error, as there is no § 33-44-114. Assuming Plaintiff meant to cite S.C. Code § 33-44-111, that Code Section does not apply here. Bonnie Travaglio Hunt is the registered agent for service of process for Hunt Law LLC at 314 Laurel Avenue, Goose Creek, South Carolina:

HUNT LAW LLC	
Corporate Information	Important Dates
Entity Id 00781123	Effective Date 09/19/2007
Entity Type Limited Liability Company	Expiration Date N/A
Status Good Standing	Term End Date N/A
Domestic/Foreign Domestic	Dissolved Date N/A
Incorporated State South Carolina	
Registered Agent	
Agent BONNIE TRAVAGLIO HUNT	
Address 314 Laurel Avenue Goose Creek, South Carolina 29445	

The undersigned is unaware of any effort by Plaintiff to serve Hunt Law, LLC (or Ms. Hunt) with the subpoena via the LLC's registered agent or otherwise prior to purporting to serve through the Secretary of State. Plaintiff's motion to strike (Dkt. No. 176), references alleged "prior instances in which Ms. Hunt and Mr. Countryman [the undersigned] had evaded or obstructed service in related proceedings" (not in this case). Hunt rejects these baseless allegations.

Regardless, purported service of the subpoena through the Secretary of State is invalid because Hunt Law, LCC's registered agent is readily available and had not been contacted prior to purported service through the Secretary of State, evading the primary service requirement under the statute. Further, S.C. Code § 33-44-111 provides for service on LLCs, not individuals. Service under through the Secretary of State if valid at all, would only be effective on Hunt Law, LLC, not Ms. Hunt.

b. Service via certified mail

Plaintiff sent the subpoena to Hunt via certified mail (no return receipt or restricted delivery) postmarked October 9, 2025.



This does not comply with Fed. R. Civ. P. 45(b)(1) or the case law interpreting it. Plaintiff has not shown Plaintiff diligently attempted to effectuate personal service prior to using certified mail. Therefore, the subpoena has not been properly served and is ineffective.

CONCLUSION

Hunt therefore respectfully requests this Court deny Plaintiff's Motion to Compel (Dkt. No. 241). Hunt also requests an award of reasonable attorney's fees and costs associated with having to file another pleading regarding this subpoena issue on which the Court has already ruled, and which has no basis in law or fact, as well as other and further relief as the Court deems just and proper.

Respectfully submitted,



By: _____

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**Lawyer for Non-Parties Hunt Law,
LLC and Bonnie Travaglio Hunt**

Dec. 15, 2025.

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CERTIFICATE OF SERVICE

The undersigned certifies that immediately upon the court accepting the foregoing pleading as filed, a copy of the same will be served on Plaintiff, *pro se*, US Mail addressed as follows (all other counsel of record being electronically served through the ECF system):

Debra Nelson

[REDACTED]

Plaintiff (*pro se*)



Andrew W. Countryman
Dec. 15, 2025
Mt. Pleasant, SC